

		record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
8	23-01361430 <i>Garcia vs. Ross Dress for Less, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Ross Dress for Less, Inc.’s Motion for Summary Judgment is DENIED. “In order to establish liability on a negligence theory, a plaintiff must prove duty, breach, causation and damages. [¶] A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1205 [cleaned up].) Defendant failed to satisfy its burden of disproving the element of breach of duty in Plaintiff’s claims. Defendant provides evidence of its employees swept the area where the incident occurred within at least 10 minutes of the accident occurring and there was no liquid on the ground. However, Defendant admits the liquid excreted from a small ball which was on the ground. (UMF 11.) Defendant does not establish for the purposes of its summary judgment motion when the ball was moved to the area around the incident. Further, viewing the evidence in a light most favorably to Plaintiff as the non-moving party, there is a dispute of material fact as to whether the ball itself constituted a tripping hazard which should have been removed by Defendant’s employee. Therefore, summary judgment and summary adjudication as to the causes of action for negligence and premise liability are denied.
9	25-01486648 <i>Ghadiri vs. Floor and Decor Outlets of American, Inc.</i>	Motion to Compel Further Responses to Form Interrogatories Defendant Floor and Décor Outlets of America, Inc.’s Motion to Compel Further Responses to Form Interrogatories is DENIED as moot. Defendant’s request for sanction is GRANTED in the reduced amount of \$1,343.33 against Plaintiff and his counsel of record, jointly and severally. Plaintiff provided supplemental responses on March 12, 2026 which substantively changed the responses. Thus, Defendant’s motion is moot. <u>Sanctions</u> “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300(d).)

		The Court finds Plaintiff did not act with substantial justification in substituting irrelevant information for relevant information and providing non-responsive answers in his first set of supplemental responses, thus, necessitating Defendant to file this Motion. Therefore, the request for sanctions is granted.
11	24-01423297 <i>Ito vs. HeyTutor, Inc</i>	Motion for Summary Judgment and/or Adjudication
12	24-01439966 <i>Loera vs. Hoang</i>	1) Motion to Compel Production 2) Motion to Compel Production <u>Motion No. 1:</u> Plaintiff's Motion to Compel Defendant Khiem Hoang's Production of Documents at Deposition is CONTINUED to 6/4/26. In the motion, Plaintiff moves to compel Defendant to produce documents in response to Plaintiff's request for production (RFP) seeking "ALL surveillance movies or photographs which have been taken of the Plaintiff, whether or not those movies/photographs actually depict Plaintiff." Defendant objected to the RFP based on attorney-client privilege and work product doctrine and premature disclosure of impeachment evidence. Defendant contends the motion was premature and improper because there was no attempt to meet and confer via phone, in person, or videoconference before filing the motion as required under the recently amended Code of Civil Procedure section 2016.040(a), which provides, "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." Defendant further argues Plaintiff failed to move to compel further responses to prior discovery requests seeking the same information and that surveillance (or "sub rosa") evidence is subject to qualified work product protection. Plaintiff has not filed a timely reply brief. Trial is set for 6/15/26. If this dispute has not been resolved, counsel for the parties are ordered to engage in further efforts to meet and confer consistent with Code of Civil Procedure section 2016.040, including whether any responsive materials are discoverable under <i>Suezaki v. Superior Court of Santa Clara County</i> (1962) 58 Cal.2d 166. Plaintiff shall file and serve a supplemental brief, not to exceed five pages, no later than 5/27/26.